

SERVICE CONTRACT

This Agreement is entered into as of Nov 4, 2023 (the "Effective Date") by and between Delta Works, with its principal place of business in Atlanta, GA ("Client"), and Evergreen Manufacturing, with its principal place of business in Denver, CO ("Provider"). The parties agree as follows:

Independent Contractor. Evergreen Manufacturing is an independent contractor and nothing in this Agreement creates a partnership, joint venture, agency, or employment relationship between the parties. Evergreen Manufacturing is solely responsible for its own taxes, insurance, and employee obligations.

Term and Renewal. This Agreement shall commence on the Effective Date and continue for an initial term of 12 months, unless earlier terminated as provided herein. The Agreement will renew automatically for successive terms of equal length unless either party gives written notice of non-renewal at least 15 days before the end of the then-current term.

Termination. Either party may terminate this Agreement upon 15 days' written notice to the other party. Either party may terminate immediately upon a material breach by the other party that remains uncured 15 days after written notice of the breach.

Scope of Services. Evergreen Manufacturing shall provide the services described in Exhibit A (the "Services") to Delta Works in a professional and workmanlike manner, consistent with industry standards. Any changes to the scope of the Services must be agreed in writing by both parties before work begins.

Limitation of Liability. Except for breaches of confidentiality, neither party shall be liable for any indirect, incidental, special, or consequential damages arising out of this Agreement. Each party's aggregate liability shall not exceed the total fees paid or payable by Delta Works in the twelve months preceding the claim.

Compensation. In consideration of the Services, Delta Works shall pay Evergreen Manufacturing fees not to exceed \$104,000 per invoice period. All invoices are payable within 15 days of receipt. Amounts unpaid after the due date accrue interest at the lesser of 1.5% per month or the maximum rate permitted by law.

IN WITNESS WHEREOF, the parties have executed this Agreement as of the Effective Date.

Noah Santos, Delta Works

Omar Rossi, Evergreen Manufacturing